

the record is not sealed, the proposed sealing is narrowly tailored, and no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

Defendant has established an overriding interest in sealing the identified materials and that the overriding interest will be prejudiced without sealing in that the materials concern private personnel records of Defendant's public employees and investigations into allegations of misconduct potentially leading to formal discipline. (*San Diego Trolley, Inc. v. Superior Court* (2001) 87 Cal.App.4th 1083, 1097 [disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531]; *Marken v. Santa Monica-Malibu Unified School District* (2012) 202 Cal.App.4th 1250, 1261.) The proposed sealing is narrowly tailored to protect the most sensitive personnel records and related documents submitted in support of Defendant's motion and no less restrictive means exist to protect the underlying privacy interests.

Conclusion. Defendant's unopposed motion to seal is granted.

Motion for Summary Judgment

The court, on its own motion, continues the hearing to June 11, 2026 at 9:30 a.m.

CHADWICK v. TOYOTA MOTOR SALES, U.S.A., INC., ET AL.
Case No. CU25-10667

Demurrer and Motion to Strike

TENTATIVE RULING:

Demurrer

Defendant Toyota Motor Sales, U.S.A., Inc.'s demurrer to the sixth cause of action for fraudulent inducement-concealment is OVERRULED.

The allegations of the cause of action are similar to those found sufficient in *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal.App.5th 828 and not to the allegations in *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1. The significant distinction is fraudulent concealment in the inducement to contract - or pre-contract tort behavior- rather than fraudulent concealment in the performance of a contract. The latter requires an analysis as to whether tort damages independent of contractual damages can be alleged.

Plaintiff's cause of action alleges fraudulent concealment *prior* to the existence of a contractual relationship. Plaintiff has alleged that the transmission was defective (Complaint, ¶ 52), Defendant knew of the defects and the hazards they pose (Complaint, ¶¶ 54, 57), Defendant had exclusive knowledge of the defects but intentionally concealed that information (FAC, ¶¶ 55, 57, 59(c)), Defendant intended to deceive plaintiff by concealing the known transmission defects (Complaint, ¶ 60), Plaintiff would not have purchased the vehicle had he known of the defects (Complaint,

¶ 56), and Plaintiff has been damaged in the form of money paid to purchase the car (Complaint, ¶ 63). Fraudulent inducement claims are an exception to the economic loss rule and independent of a manufacturer's breach of warranty. (*Dhital*, 84 Cal.App.5th at 843.)

Motion to Strike

Defendant's motion to strike Plaintiff's prayer for punitive damages is denied. Not only has Plaintiff adequately pleaded a fraudulent inducement cause of action which can support a claim for punitive damages (*Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946, 965-966), Plaintiff need not make an election between civil penalties and punitive damages for the Song-Beverly causes of action at the pleading stage (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1256-1257).

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002